

his Excellency General Haldimand to be immediately paid, amounts to 21,981l. 14s. 11½d. New York currency."

The bills which Sinclair drew in favour of the plaintiff were drawn on the defendant as governor and commander in chief.

The plaintiff finding that all these bills drawn by Sinclair, and indorsed by himself, which were to a much greater amount than the above-mentioned sum, would not be accepted by the defendant, received a partial payment from him, with a proviso, that it should not prejudice his claim for the remainder; to recover which was the object of the present action.

The plaintiff remained in his post till 1785.

It was acknowledged at the trial, and in Court, that all the accounts had been submitted to a board of officers by the defendant, for them to examine and report what charges ought to be allowed, and that the sum adjudged by them to be due, which fell very short of the plaintiff's demand, had been paid by the Treasury.

Buller, Justice, after reporting the above facts, said, that he had been of opinion at the trial, that, the goods in question having been supplied for the use of Government, and the defendant not having personally undertaken to pay, the plaintiff ought to be nonsuited. That it appeared to him that the plaintiff had acted with the defendant solely in the character of commander in chief, considering him as the agent of Government. [176] That all the letters imported it to be a transaction on the part of Government: and that the accounts confirmed it. But the plaintiff's counsel appearing for their client when he was called (a), he left the question to the jury, telling them that they were bound to find for the defendant in point of law. And upon their asking him whether, in the event of the defendant's not being liable, any other person was, he told them that was no part of their consideration: but, being willing to give them any information, he added, that he was of opinion that, if the plaintiff's demand were just, his proper remedy was by a petition of right to the Crown. On which they found a verdict for the defendant.

The rule for granting a new trial was moved for on the misdirection of the Judge upon two points.

1st, that the defendant had by his own conduct made himself personally liable, which question should have been left to the jury.

2dly, that the plaintiff had no remedy against the Crown by a petition of right, on the supposition of which the jury had been induced to give their verdict.

Lord Mansfield, Ch.J.—Now declared, that the Court did not feel it necessary for them to give any opinion on the second ground.

His Lordship said, that great difference had arisen since the Revolution, with respect to the expenditure of the public money. Before that period, all the public supplies were given to the King, who in his individual capacity contracted for all expenses. He alone had the disposition of the public money. But since that time, the supplies have been appropriated by Parliament to particular purposes, and now whoever advances money for the public service trusts to the faith of Parliament.

That according to the tenor of Lord Somers's argument (b) in *The Banker's case*, though a petition of right would lie, yet it would probably produce no effect. No benefit was ever derived from it in *The Banker's case*; and Parliament was afterwards obliged to provide a particular fund towards the payment of those debts (c). Whether however this alteration in the mode of distributing the [177] supplies had made any difference in the law upon this subject, it was unnecessary to determine; at any rate, if there were a recovery against the Crown, application must be made to Parliament, and it would come under the head of supplies for the year.

Bearcroft and Bower shewed cause.

They allowed that a person, acting in a public situation under Government, might by his own conduct make himself personally liable for contracts, for which, from the nature of his office, he would not otherwise be answerable. But the plaintiff

(a) Vid. *Watkins v. Towers*, post, 2 vol. 281.

(b) Vid. 11 State Trials, 159.

(c) The Stat. 12 & 13 W. 3, c. 12, § 15, provides, that in lieu of the annuities granted to the bankers and all arrears, the hereditary excise shall, after the 26 December 1701, be charged with annual sums equal to an interest of 3 per cent. till redeemed by payment of one moiety of the principal sums.